

β. Sale by executor for payment of his own debt.—The executor may not sell or pledge the assets for raising money to carry on the testator's business, though in pursuance of the directions contained in his will, for the debts of the business are not the testator's debts, [and a direction by a testator that his trade shall be carried on by his executors does not authorise the employment in that trade of more of the testator's property than was employed by him in his business] (*b*), or to pay or secure the executor's own debt (*c*), or for a debt *wrongfully contracted* by him as executor (*d*), for *primâ facie* this is a diversion of the assets to a purpose wholly foreign to the administration, and therefore a *devastavit*. "Though," observed Sir W. Grant, "it may be dangerous at all to restrain the power of *purchasing* from the executor, what inconvenience can there be in holding that the assets known to be such should not be applied in any case for the *executor's debt*, unless the creditor could be first satisfied of his right? It may be essential that the executor should have the power to *sell* the assets, but it is not essential that he should have the power to pay his own creditor; and it is not just that one man's property should be applied to the payment of another man's debt" (*e*).

Where the executor is specific or residuary legatee.—But if the executor *be also the specific* (*f*), or *residuary legatee* (*g*),

W. 149, *per* Sir J. Jekyll; M'Mullen v. O'Reilly, 15 Ir. Ch. Rep. 251; and see Drohan v. Drohan, 1 B. & B. 185.

(*b*) McNeillie v. Acton, 2 Eq. Rep. 21; 4 De G. M. & G. 744. [But the executors may sell or pledge any part of the property actually employed in the business, and it has been held in a recent case in Ireland that the power of disposition extends to mortgaging the freehold premises upon which the business is carried on; Devitt v. Kearney, 13 L. R. Ir. 45; reversing S. C. 11 L. R. Ir. 225.]

(*c*) Scott v. Tyler, 2 Dick. 712; Hill v. Simpson, 7 Ves. 152; Watkins v. Cheek, 2 S. & S. 205, *per* Sir J. Leach; Keane v. Robarts, 4 Mad. 357, *per eundem*; Crane v. Drake, 2 Vern.

616; Anon. case, cited Pr. Ch. 434; Andrew v. Wrigley, 4 B. C. C. 137, *per* Lord Alvanley; and see Eland v. Eland, 4 M. & Cr. 427; Miles v. Durnford, 2 De G. M. & G. 641; [Jones v. Stöhwasser, 16 Ch. D. 577.]

(*d*) Collinson v. Lister, 20 Beav. 356; 7 De G. M. & G. 634.

(*e*) Hill v. Simpson, 7 Ves. 169.

(*f*) Taylor v. Hawkins, 8 Ves. 209.

(*g*) Nugent v. Gifford, 1 Atk. 463; corrected from Reg. Lib. 4 B. C. C. 136; Mead v. Orrery, 3 Atk. 235; Whale v. Booth, 4 T. R. 625, note (*a*). See the comments of Lord Eldon, M'Leod v. Drummond, 17 Ves. 163; and see Bedford v. Woodham, 4 Ves. 40, note; Storry v. Walsh, 18 Beav. 559.